

SquareUp — Master Services Agreement and Terms of Service

Effective date: May 21, 2026

This Master Services Agreement (this "Agreement") is entered into between SquareUp, Inc., a Delaware corporation ("SquareUp"), and the customer that signs an Order Form referencing it ("Client"). It governs Client's access to and use of SquareUp's AI voice-agent customer-research services. SquareUp may perform its obligations through its affiliates, including its Indian subsidiary, and remains responsible for their performance. By signing an Order Form, creating an account, or using the Services, Client agrees to this Agreement. If you accept on behalf of an organisation, you confirm you have authority to bind it.

How this Agreement is structured. This Agreement sets the standing terms between SquareUp and Client. The specifics of each engagement — scope, deliverables, fees, timing, and whether it is a per-project pilot or a subscription — are set out in one or more **Order Forms** (or statements of work) that reference this Agreement. If an Order Form conflicts with this Agreement, the Order Form controls for that engagement.

1. Definitions

- **"Services"** means SquareUp's AI voice-agent customer-research services, including the SquareUp platform and websites (the "Platform"), the conduct of AI-moderated voice interviews, recording and transcription, and the analysis and synthesis of responses into research insights, as described in an Order Form.
- **"Order Form"** means an ordering document or statement of work, whether for a per-project pilot or a subscription, that references this Agreement and is signed or otherwise accepted by both parties.
- **"Authorized User"** means an employee or contractor of Client whom Client permits to access the Services on its behalf.
- **"Client Data"** means all data, materials, and instructions Client or its Authorized Users provide to SquareUp or input into the Services, including research objectives, screening criteria, discussion guides, brand materials, and Client Contacts.
- **"Client Contacts"** means contact details of individuals (such as a Client's own customers) that Client supplies to SquareUp so they can be invited to participate in interviews.
- **"Participant"** means an individual who takes part, or is invited to take part, in an interview.
- **"Recordings"** means audio recordings of interviews conducted through the Services, and their associated transcripts.
- **"Insights" or "Deliverables"** means the research outputs SquareUp provides to Client, such as synthesised findings, summaries, themes, and reports.
- **"AI Features"** means features of the Services that use artificial intelligence, machine learning, or large language models, including the AI voice interviewer and automated analysis.

- **"Outputs"** means content generated by the AI Features, including transcripts, summaries, and Insights.
- **"Usage Data"** means data about the configuration, performance, and use of the Services, in a form that does not identify Client, any Authorized User, or any Participant.
- **"Personal Data"** means information relating to an identified or identifiable individual that is processed under this Agreement. The **"DPA"** means the Data Processing Agreement (Document 4 of this pack).
- **"Confidential Information"** has the meaning given in Section 11; **"Documentation"** means SquareUp's standard user and product documentation; **"Fees"** means the amounts payable under an Order Form.

2. The Services and Order Forms

2.1 Provision of the Services. Subject to this Agreement, SquareUp will provide the Services described in each Order Form and grants Client a limited, non-exclusive, non-transferable, non-sublicensable right to access and use the Services and Documentation during the applicable term, solely for Client's internal business purposes.

2.2 Order Forms. Each Order Form specifies the scope of the engagement, deliverables, fees, and term. Pilots are scoped and priced per project; subscriptions provide ongoing access for a recurring fee. The parties may agree changes to an Order Form in writing.

2.3 Conduct of interviews. SquareUp's AI voice interviewer conducts interviews with Participants by outbound call, inbound or participant-initiated session, or both, as agreed in the Order Form. Interviews are recorded and transcribed so that responses can be analysed. SquareUp will present Participants with the consent and AI-disclosure information described in the Participant Consent Script (Document 7) and the Participant Privacy Notice (Document 3).

2.4 Changes to the Services. SquareUp may update or improve the Services from time to time, provided it does not materially reduce the core functionality of a Service that Client is then paying for during a paid term.

2.5 Subcontractors. SquareUp may use affiliates and subcontractors, including the subprocessors listed in the DPA, to provide the Services, and remains responsible for their performance under this Agreement.

2.6 Service availability. SquareUp will use commercially reasonable efforts to make the Platform and Services available, and to conduct interviews, in a reliable and timely manner. This Agreement does not commit SquareUp to a specific uptime percentage; where a Client requires a defined service-level commitment, the parties may agree one in an Order Form. Planned maintenance, and events outside SquareUp's reasonable control, are excluded from any availability measurement.

3. Accounts and Authorized Users

3.1 Client is responsible for its Authorized Users and for all activity under its account. Client will keep credentials confidential, ensure Authorized Users comply with this Agreement, and promptly notify SquareUp of any unauthorised use.

3.2 The Services are for business use by individuals aged 18 or over. Client will not permit access by anyone under 18.

4. Fees, Taxes, and Payment

4.1 **Fees.** Client will pay the Fees stated in each Order Form. Unless an Order Form says otherwise, project fees are invoiced on acceptance of the Order Form, and subscription fees are invoiced in advance for each billing period.

4.2 **Payment.** Invoices are due within 15 days of the invoice date, in the currency stated in the Order Form. Late amounts may accrue interest at the lower of 1.5% per month or the maximum permitted by law, and SquareUp may suspend the Services for non-payment after reasonable notice.

4.3 **Taxes.** Fees are exclusive of taxes. Client is responsible for all sales, use, GST, VAT, withholding, and similar taxes, except taxes on SquareUp's net income.

4.4 **Non-cancellable.** Except as expressly stated in this Agreement, Fees are non-cancellable and amounts paid are non-refundable.

4.5 **Fee changes.** SquareUp may change subscription fees effective from the start of a renewal term by giving notice before that renewal.

5. Term and Termination

5.1 **Term.** This Agreement begins on the effective date of the first Order Form and continues while any Order Form is in effect. Each Order Form runs for the term stated in it.

5.2 **Termination for cause.** Either party may terminate this Agreement, or an affected Order Form, if the other party materially breaches and does not cure the breach within 30 days of written notice, or immediately if the other party becomes insolvent or subject to bankruptcy or similar proceedings.

5.3 **Suspension.** SquareUp may suspend access where reasonably necessary to address a material security risk, a violation of Section 7 (Acceptable Use), or non-payment. SquareUp will use suspension narrowly and restore access once the issue is resolved.

5.4 **Effect of termination.** On termination, Client's right to use the Services ends, Client will pay all Fees accrued up to the termination date, and each party will handle Personal Data as set out in the DPA. SquareUp will make available any Deliverables already paid for.

5.5 **Survival.** Sections 1, 4 (for accrued amounts), 9, 11, 12, 13, 14, 16, and 17 survive termination, along with any provision that by its nature should survive.

6. Client Responsibilities and Warranties

6.1 Lawful basis for Client Contacts

Where Client supplies Client Contacts for SquareUp to invite to interviews, Client acts as the controller of those contacts and SquareUp acts as Client's processor (see the DPA). Client represents and warrants, on a continuing basis, that:

- it has collected the Client Contacts lawfully and has given those individuals all privacy notices required by applicable law;

- it has a valid legal basis — including all consents required by applicable law — to share the Client Contacts with SquareUp and to have those individuals contacted and interviewed for research purposes by SquareUp on Client's behalf;
- for any individual to be contacted by outbound telephone call, it has obtained the prior express consent required by the U.S. Telephone Consumer Protection Act (TCPA) and FCC rules — including consent applicable to calls that use an artificial or AI-generated voice — and by any equivalent law in India or other relevant jurisdiction, and it has not received any do-not-call or opt-out request from those individuals;
- it has the right to have interviews with those individuals recorded, and is not aware of any restriction that would prevent recording; and
- the Client Contacts do not include anyone Client knows, or reasonably should know, is under 18.

6.2 Instructions and content

Client is responsible for its research objectives, screening criteria, discussion guides, and other Client Data, and warrants that they are lawful, non-discriminatory, not deceptive, and do not infringe any third-party rights. Client will not instruct SquareUp to conduct interviews, or use the Insights, in any way prohibited by Section 7 or the Acceptable Use Policy (Document 6).

6.3 Cooperation and Client's own compliance

Client will provide timely cooperation, information, and approvals reasonably needed for SquareUp to deliver the Services. Client is responsible for its own compliance with the laws applicable to its business and its use of the Insights, including any decision Client makes based on the Insights.

7. Acceptable Use

Client and its Authorized Users will use the Services only as permitted by this Agreement and the Acceptable Use Policy (Document 6), which is incorporated by reference. Without limiting the AUP, Client will not, and will not permit others to: (a) resell, sublicense, or provide the Services to third parties except for Client's own research; (b) use the Services to make, or substantially inform, legal, employment, credit, housing, insurance, or other decisions that produce legal or similarly significant effects on an individual; (c) reverse engineer or attempt to access the source code or underlying models of the Services; (d) scrape or use automated means to extract data from the Services except as expressly permitted; (e) upload unlawful, infringing, or harmful content or malware; or (f) interfere with the integrity or security of the Services.

8. Data Protection and Privacy

8.1 The parties will comply with the **Data Processing Agreement (Document 4)**, which is incorporated into this Agreement and governs the processing of Personal Data. Where Client supplies Client Contacts or otherwise determines the purposes of processing, Client is the controller and SquareUp is the processor. Where SquareUp sources Participants itself, SquareUp acts as an independent controller of that Participant Personal Data, as described in the Participant Privacy Notice (Document 3).

8.2 SquareUp will handle Participant Personal Data in accordance with the Participant Privacy Notice and will present Participants with the consent and AI-disclosure information in the Participant Consent Script.

8.3 SquareUp follows a data-localisation approach: personal data relating to United States operations is stored in the United States, and personal data relating to India operations is stored in India, as further described in the DPA.

9. Intellectual Property and Data Rights

9.1 Client Data. As between the parties, Client owns all Client Data. Client grants SquareUp a non-exclusive, worldwide, royalty-free licence to use, host, process, and create derivatives of Client Data as needed to provide the Services and Deliverables and to comply with law.

9.2 Deliverables. On payment of the applicable Fees, SquareUp grants Client a perpetual, irrevocable, worldwide, royalty-free, non-exclusive licence to use, reproduce, and create derivative works of the Insights and Deliverables prepared for Client, for Client's internal business purposes. Client may not resell or commercially redistribute the Deliverables as a standalone research product.

9.3 SquareUp IP. SquareUp owns and retains all rights in the Services, the Platform, its AI Features, models, software, methodologies, and Documentation, and all improvements to them. Nothing in this Agreement transfers ownership of SquareUp IP to Client.

9.4 Recordings and interview data. Recordings and transcripts are handled as Personal Data under the DPA and the Participant Privacy Notice. By default they are retained for approximately 12 months after the relevant project, unless the Order Form specifies a different period or Client requests earlier deletion.

9.5 Service improvement; de-identified data. SquareUp may use Client Data, Recordings, and transcripts to operate and provide the Services. SquareUp may also use such data to develop and improve its Services and AI Features, and may retain and use Usage Data and de-identified data for any lawful business purpose — in each case **only in de-identified or aggregated form that does not identify Client, any Authorized User, or any Participant**. SquareUp will not use identifiable Recordings or transcripts to train its AI models.

9.6 Feedback. If Client provides suggestions or feedback about the Services, SquareUp may use them without restriction or obligation to Client.

10. AI Features and Disclaimers

10.1 The Services use AI Features, including an AI voice interviewer and automated analysis, and rely on third-party AI and large-language-model providers. Outputs are generated by probabilistic systems.

10.2 Client acknowledges that Outputs may be inaccurate, incomplete, or unsuitable for a particular purpose, and may not be unique to Client. Client is responsible for reviewing and validating Outputs before relying on them. The AI Features are not intended for, and must not be used for, high-risk uses or for making decisions that produce legal or similarly significant effects on individuals (see Section 7).

10.3 SquareUp will inform Participants that they are interacting with an AI interviewer, consistent with applicable AI-disclosure laws. SquareUp's AI may automatically screen Participants for study eligibility; this automated screening does not produce legal or similarly significant effects on individuals.

10.4 **Third-party AI and model providers.** The Services rely on third-party large-language-model, speech-to-text, and voice-infrastructure providers, identified as sub-processors in the DPA. SquareUp will contract with those providers on terms that, consistent with its current practice, do not permit them to use Client Data, Recordings, or transcripts to train their own foundation models. SquareUp is not responsible for those providers' own products, model changes, or service interruptions that are beyond SquareUp's reasonable control.

11. Confidentiality

11.1 **"Confidential Information"** means non-public information disclosed by one party ("Discloser") to the other ("Recipient") that is marked, or should reasonably be understood, as confidential, including the terms of Order Forms, Client Data, the Insights, and SquareUp's non-public technology and roadmap.

11.2 Recipient will use Confidential Information only to perform or exercise its rights under this Agreement, protect it with at least reasonable care, and not disclose it except to its personnel and advisers who need it and are bound by confidentiality obligations.

11.3 Confidential Information does not include information that is or becomes public without breach, was independently developed without use of the Confidential Information, or was rightfully obtained from a third party. Recipient may disclose Confidential Information if required by law, giving the Discloser reasonable prior notice where permitted.

12. Warranties and Disclaimers

12.1 **Mutual.** Each party warrants that it has the authority to enter into this Agreement.

12.2 **SquareUp warranty.** SquareUp warrants that it will provide the Services in a professional and workmanlike manner and substantially in accordance with the applicable Order Form.

12.3 **Disclaimer.** EXCEPT AS EXPRESSLY STATED IN THIS AGREEMENT, THE SERVICES, PLATFORM, AI FEATURES, AND OUTPUTS ARE PROVIDED "AS IS" AND "AS AVAILABLE." TO THE MAXIMUM EXTENT PERMITTED BY LAW, SQUAREUP DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, AND ANY WARRANTY THAT THE SERVICES WILL BE UNINTERRUPTED OR ERROR-FREE OR THAT OUTPUTS WILL BE ACCURATE OR COMPLETE.

13. Indemnification

13.1 **By SquareUp.** SquareUp will defend Client against third-party claims that the Services, as provided by SquareUp and used in accordance with this Agreement, infringe that third party's intellectual property rights, and will indemnify Client for amounts finally awarded or agreed in settlement. This obligation does not apply to claims arising from Client Data, Client's instructions, the Outputs of AI Features, or use of the Services in breach of this Agreement.

13.2 By Client. Client will defend and indemnify SquareUp against third-party claims arising from (a) Client Data and Client Contacts, including any claim that SquareUp's contacting, interviewing, or recording of individuals based on Client Contacts lacked a required consent or legal basis; (b) Client's instructions or research design; (c) Client's use of the Insights; or (d) Client's breach of this Agreement or applicable law.

13.3 Procedure. The indemnified party will give prompt notice of the claim, allow the indemnifying party to control the defence, and provide reasonable cooperation. No settlement that imposes a non-financial obligation on the indemnified party may be made without its consent.

14. Limitation of Liability

14.1 Exclusion of indirect damages. TO THE MAXIMUM EXTENT PERMITTED BY LAW, NEITHER PARTY WILL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, REVENUE, GOODWILL, OR DATA, EVEN IF ADVISED OF THE POSSIBILITY.

14.2 General cap. TO THE MAXIMUM EXTENT PERMITTED BY LAW, AND EXCEPT AS STATED IN SECTIONS 14.3 AND 14.4, EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT WILL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CLIENT UNDER THIS AGREEMENT IN THE 12 MONTHS BEFORE THE EVENT GIVING RISE TO THE LIABILITY.

14.3 Enhanced cap for data and confidentiality. For liability arising from a party's breach of its data-protection or information-security obligations (including under the DPA), or its confidentiality obligations, the cap in Section 14.2 is replaced by a cap equal to two times (2×) the total Fees paid or payable by Client under this Agreement in the 12 months before the event. The parties may agree a different amount for a particular engagement in an Order Form.

14.4 Matters not subject to the caps. The caps in Sections 14.2 and 14.3 do not apply to: (a) Client's obligation to pay Fees; (b) a party's indemnification obligations under Section 13; (c) a party's infringement or misappropriation of the other party's intellectual-property rights; or (d) liability for fraud, wilful misconduct, or gross negligence, or any other liability that cannot be limited under applicable law.

14.5 Basis of the bargain. The parties agree that these limitations are a reasonable allocation of risk, are a fundamental basis of the bargain, and are reflected in the Fees.

15. Publicity

Neither party will use the other's name or marks in publicity without prior written consent, except that SquareUp may identify Client as a customer, using Client's name and logo, on its website and in sales materials, subject to Client's brand guidelines and to Client's right to withdraw that consent at any time on written request.

16. Governing Law and Dispute Resolution

16.1 Governing law. This Agreement is governed by the laws of the State of Delaware, USA, without regard to conflict-of-laws rules, and excluding the UN Convention on Contracts for the International Sale of Goods.

16.2 Informal resolution. Before commencing formal proceedings, the parties will try in good faith to resolve any dispute through discussion between senior representatives for at least 30 days after written notice of the dispute.

16.3 Jurisdiction. Any dispute not resolved informally will be subject to the exclusive jurisdiction of the state and federal courts located in the State of Delaware, USA, and each party consents to the personal jurisdiction and venue of those courts.

16.4 Jury and class-action waiver. To the maximum extent permitted by law, each party waives any right to a trial by jury, and each party will bring claims relating to this Agreement only in its individual capacity, and not as a plaintiff or class member in any class or representative action.

17. General Provisions

- **Entire agreement; precedence.** This Agreement, the DPA, the AUP, and the Order Forms are the entire agreement between the parties on this subject and supersede prior discussions. If they conflict, the order of precedence is: (1) the applicable Order Form; (2) the DPA; (3) this Agreement; (4) the AUP.
- **Amendments.** Except for changes SquareUp is permitted to make to the Services or to subscription fees as stated above, any amendment must be in writing and agreed by both parties.
- **Assignment.** Neither party may assign this Agreement without the other's consent, except that either party may assign it to an affiliate or in connection with a merger, acquisition, or sale of substantially all assets, with notice to the other party.
- **Notices.** Notices must be in writing and sent to the contact addresses in the Order Form, or to hello@joinsquareup.com for SquareUp. Legal notices are effective on receipt.
- **Force majeure.** Neither party is liable for delay or failure caused by events beyond its reasonable control.
- **Independent contractors.** The parties are independent contractors; this Agreement creates no partnership, agency, or employment relationship.
- **No third-party beneficiaries.** This Agreement does not create rights for any third party.
- **Export and sanctions; anti-corruption.** Each party will comply with applicable export-control, economic-sanctions, anti-bribery, and anti-corruption laws.
- **Severability and waiver.** If any provision is held unenforceable, the rest remains in effect; a failure to enforce a provision is not a waiver.
- **Counterparts.** Order Forms may be signed in counterparts, including electronically.

Acceptance. This Agreement is accepted when Client signs an Order Form referencing it, or otherwise indicates acceptance as permitted above. Signature blocks appear on each Order Form.